

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
SONIA WIMMS,

Plaintiff,

-against-

CITY OF NEW YORK, STEVEN HUMBURG, and
JOHN OR JANE DOE 1-10,

Defendants.
-----X

SUMMONS

Index No.
Purchased:

Plaintiff Designates Queens County
as the Proper Venue for Trial

Venue is the county in which the
causes of action arose

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 13, 2024

SIM & DEPAOLA, LLP

Attorneys-at-Law
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Bayside, New York 11361
(718) 281-0400

s/Junya Zeng

Junya Zeng, Esq.
Attorneys for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel of the City of New York

100 Church Street

New York, New York 10007

Detective STEVEN HUMBURG

Shield No. 2874, Tax No. 947090

101st Precinct

1612 Mott Avenue

Queens, New York 11691

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
SONIA WIMMS,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, STEVEN HUMBURG, and
JOHN OR JANE DOE 1-10,Defendants.
-----X

Plaintiff, **SONIA WIMMS**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, as and for her complaint against the Defendants, **CITY OF NEW YORK, STEVEN HUMBURG**, and **JOHN OR JANE DOE 1-10**, hereby alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief *vis-à-vis* 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, including but not limited to New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, in addition to the self-executing clauses or implied private causes of action within the constitution of State of New York, for the violations of her civil rights, as enumerated by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States, the New York State Constitution, in addition to the Laws of the City and State of New York.

2. The following claims arose on October 13, 2023, when defendants, acting under color of state law, caused Plaintiff to be unlawfully stopped, questioned, searched, battered and assaulted, arrested and detained inside the vicinity of the building located at 353 Beach 43rd Street, Queens, New York. As a result, Plaintiff was deprived of her liberty and suffered various physical, emotional and psychological injuries. Plaintiff was wrongfully detained and humiliated over the course of approximately thirty (30) minutes until officers released her and left her residence.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. This action and associated claims have been filed within the applicable statute of limitations, which is three years for Plaintiff's state and federal claims.

5. Under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiff is not required to file her Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law

6. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorney's fees, with all interest then accrued, together with such other or further relief, as this venerable Court may deem just and proper.

PARTIES

7. At all relevant times herein, Plaintiff, Ms. SONIA WIMMS ("Plaintiff") is a resident of Queens, New York.

8. At all relevant times herein, Defendant CITY OF NEW YORK ("CITY") is a municipal corporation duly organized and existing under the laws of the State of New York.

9. At all relevant times herein, the New York City Police Department ("NYPD") was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant CITY.

10. At all relevant times herein, Defendant CITY, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants,

lieutenants, captains, and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

11. At all relevant times herein, Defendant CITY was responsible for enforcing the rules and regulations of the NYPD and for ensuring that the NYPD personnel obey the laws and constitutions and laws of the United States, State of New York and City of New York.

12. At all relevant times herein, Defendant STEVEN HUMBURG (“HUMBURG”) was a police officer, supervisor, official, or policy maker employed by Defendant CITY under Shield No. 2874 and Tax Id No. 947090 and as such, was working in his capacity as an agent, servant or employee of Defendant CITY. Defendant HUMBURG is being sued in his individual and official capacities.

13. At all relevant times herein, Defendants, JOHN or JANE DOE 1-10, were police officers, detectives, sergeants, policymakers or officials employed by the NYPD, or CITY. At this time, Plaintiff does not know the true names, identities or tax registry numbers of Defendants JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants. The names, JOHN or JANE DOE 1-10, are fictitious and are intended as placeholders for the employees, agents or other personnel who caused to Plaintiff to be falsely arrested, assault, battered, maliciously prosecuted, who subjected Plaintiff to excessive force or who aided, abetted, assisted or acted in concert with any other defendants to do the same.

14. At all relevant times herein, Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

15. On October 13, 2023, at approximately 6:00 a.m., Plaintiff, Ms. Wimms was in obedience of all local, state and federal rules, regulations, statutes and laws, when she was caused to be unlawfully stopped, detained, battered and assaulted, seized and searched, and falsely arrested by or at the direction of Defendants, including HUMBURG, and JOHN or JANE DOE 1-10 inside the building in the vicinity of 353 Beach 43rd Street, County of Queens, City and State of New York.

16. After having her home broken into, Plaintiff asked Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, if she could cover herself up since she was nude from just waking up, but they refused to let her dress up.

17. Instead, Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, illegally approached and falsely accused Plaintiff of a criminal acts before illegally seizing her person with their outstretched hands violently and aggressively grabbing Plaintiff's arm, without probable cause, reasonable suspicion, valid search or arrest warrant, or any legal justification whatsoever as to the commission of unlawful conduct on the part of Plaintiff, and dragged her to her couch and forced her to sit there for thirty (30) minutes as a squad of officers perused her home.

18. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, then continued to go through all of Plaintiff's home, destroying her possessions and demanding her open her locked safe, under threat of being prosecution, before leaving Plaintiff's home a mess.

19. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, were reckless, careless, and or negligent in causing Plaintiff to suffer substantial physical and emotional injuries.

20. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10 intentionally, negligently, and/or recklessly caused injury to Plaintiff.

21. The actions of Defendants, including HUMBURG, and JOHN or JANE DOE 1-10 demonstrated their deliberate indifference to the safety of Plaintiff in violation of her constitutional rights. Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights protected under the fifth, eight, and fourteenth amendments.

22. The direct and proximate result of the above Defendants' acts are that the Plaintiff suffered severe and permanent injuries of a psychological and physical nature.

23. Due to the lack of probable cause, the aforementioned conduct constituted the completed torts of Assault and Battery by Defendants, including HUMBURG, and JOHN or JANE DOE 1-10.

24. As a result, Plaintiff was caused to be unlawfully, involuntarily, and continuously detained by or at the direction Defendants, including HUMBURG, and JOHN or JANE DOE 1-10 over the course of approximately thirty (30) minutes, until her release from physical custody of defendants on or about October 13, 2023.

25. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, did not have probable cause to or reasonable suspicion to arrest, detain, or stop Plaintiff.

26. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, did not observe Plaintiff commit any crimes or violations of the law and did not possess any credible or reliable information or evidence indicative of such.

27. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, illegally subjected Plaintiff to custodial interrogation without advising Plaintiff of her rights and in the absence of requested legal counsel.

28. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, caused Plaintiff to be wrongfully arrested by swearing and attesting to observations they each knew to be false or otherwise completely fabricated, failing to further investigate incredulous allegations that lacked any evidentiary support, and which defied all rational logic.

29. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, intentionally provided said false information to the courts, so that search warrant would be issued for Plaintiff's residence.

30. At no point did Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, ever observe Plaintiff commit any crime or offense.

31. At no point were the defendants, including HUMBURG, and JOHN or JANE DOE 1-10, ever told by any witnesses that Plaintiff committed any crime or violation of the law.

32. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, namely the fabrications of the false accounts stating that Plaintiff's committed criminal offenses.

33. During all of the events described, Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, acted maliciously and with intent to injure Plaintiff.

34. At all times relevant hereto, Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, were involved in the decisions to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.

35. Defendant CITY has engaged in a policy, custom, or pattern and practice of stopping vehicles occupied by members of protected classes, especially African Americans and Hispanic or Latino individuals, without probable cause or reasonable suspicion to do so and then using excessive force in the process of unlawfully arresting said individuals.

36. Defendant CITY has also engaged in a policy, custom, or pattern and practice of concealing their unlawful arrests by fabricating false accounts that black or African American individuals were observed committing criminal acts, when no such acts were ever committed.

37. Plaintiff asserts that defendants, including HUMBURG, and JOHN or JANE DOE 1-10, falsely arrested and assaulted her, due solely to their racial discriminatory prejudices against African American or black individuals and their desire to satisfy an unconstitutional and unlawful arrest quota.

38. Plaintiff further asserts that Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, acted in such a sadistic and reprehensible manner, due to their assumption that defendants' version of events would undoubtedly and unduly be credited over Plaintiff's, solely because Plaintiff is black.

39. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, arrested, assaulted and battered Plaintiff, not because of any probable cause to believe Plaintiff had committed any crimes, violations of the law, but because Plaintiff is black.

40. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, discriminated against Plaintiff by arresting, assaulting, and battering Plaintiff, solely due to defendants' perception or consideration of Plaintiff's race, ethnicity, national origin, immigration status, religion, gender or age.

41. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the unlawful stops, searches, assaults, seizures, and arrest against Plaintiff.

42. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, possessed no valid reason to restrict Plaintiff's movements, including not allowing her to cloth herself in front of a

squad of police officers roaming her home, which gives rise to the strong inference that the unlawful acts committed by defendants against plaintiff, were discriminatorily motivated and enacted upon.

43. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, would not have arrested Plaintiff and fabricated false accounts of plaintiff committing criminal offenses, if plaintiff was not black.

44. As a direct and proximate result of the acts of defendants, including the CITY, HUMBURG, and JOHN or JANE DOE 1-10, Plaintiff suffered the following injuries and damages: violations of her rights pursuant to the First, Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

45. Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, arrested, applied excessive force against Plaintiff in retaliation for Plaintiff's exertion of her constitutional right to freely express her opinion and inquiries, namely Plaintiff's displeasure with the manner in which Defendants addressed her and her request for an explanation as to why Defendants acted so discourteously toward Plaintiff.

46. As a result of Defendants actions, Plaintiff does not feel secured of her constitutional rights, which has prevented her from feeling secure in her own home for a prolonged period of time and has effectively permanently chilled her desire and ability to communicate with police officers.

47. Plaintiff asserts that the Defendants, including HUMBURG, and JOHN or JANE DOE 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar

misconduct, which is so widespread, pervasive and consistent throughout the NYPD and Defendant CITY that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and CITY or, at the very least, conclusive evidence that the CITY and NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers or are incarcerated in their facilities.

48. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

49. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

50. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemin throughout the

NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

51. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

52. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled "Ex-Cop Details NYPD 'Collar Quotas'—Arrest Black and Hispanic Men, 'No Cuffs on Soft Targets' of Jews, Asians, Whites: Court Docs."

53. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled "I Got Tired of Hunting Black and Hispanic People," which revealed a

disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

54. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

55. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

56. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

57. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

58. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly

incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

59. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause and injuries while in custody of CITY.

60. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion, the appropriate amount of force to be used, and the proper care of arrestees.

61. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

62. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD and City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion

of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

63. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

64. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City of New York or NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement or correctional officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including the above-named defendants.

65. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

66. The aforementioned acts of defendants, including CITY, HUMBURG, and JOHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights,

as guaranteed and protected by the First, Fourth, Fifth, Sixth, Eighth or Fourteenth Amendments to the United States Constitution, as well as the laws and constitution of the State of New York.

67. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of her liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Freedom of Speech Retaliation Claim Under
New York State Law

68. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

69. Plaintiff engaged in speech and activities that were protected by section 8, of Article I to the constitution of the State of New York.

70. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

71. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of her liberty and the initiation of criminal charges against him.

72. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling her desire to further participate or engage in such protected speech or activities.

73. Accordingly, Plaintiff's right to engage in protected speech and activities, guaranteed and protected by section 8, of Article I to the constitution of the State of New York was violated by Defendants and thus, Defendants are subject to liability for violations of the constitution of the

State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

76. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

77. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

78. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

79. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

80. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling her desire to further participate or engage in such protected speech or activities.

81. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

82. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

83. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

84. Defendants subjected Plaintiff and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

85. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to her person and property.

86. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.

87. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

88. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York and section 8, Article II, of the New York Civil Rights Law. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

89. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

90. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION**Unlawful Search & Seizure Under****42 U.S.C. § 1983 *Against* Individual NYPD Defendants**

91. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

92. Defendants subjected Plaintiff and her property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

93. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to her person and property.

94. Plaintiff did not consent to the unreasonable searches and seizures to her person or property.

95. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

96. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

97. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION**False Arrest & False Imprisonment Under
New York State Law**

98. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

99. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

100. Plaintiff was conscious of her confinement.

101. Plaintiff did not consent to her confinement.

102. Plaintiff's arrest and false imprisonment was not otherwise privileged.

103. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

104. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

105. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

106. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

107. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

108. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

109. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

111. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

112. At all relevant times, Defendants caused Plaintiff to fear for her physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

113. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without her consent or justification.

114. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

115. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

116. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

117. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

118. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

119. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

120. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without her consent.

121. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

122. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

123. Defendants initiated the prosecution against Plaintiff.

124. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution could succeed.

125. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

126. The prosecution was terminated in favor of Plaintiff when all criminal charges were unconditionally dismissed and sealed on the merits, pursuant to sections 160.50 or 160.60 of the New York Criminal Procedure Law.

127. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

128. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

129. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

130. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

131. proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

132. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

133. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

134. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

135. Defendants intended to inflict substantial harm upon Plaintiff.

136. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

137. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

138. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

139. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Rights to Due Process & Fair Trial Under
42 U.S.C. § 1983 *Against* Individual Defendants

140. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

141. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

142. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

143. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

144. Accordingly, Defendants violated Plaintiff's right to Fair Trial and Due Process of Law, pursuant to the Fifth, Sixth or Fourteenth Amendments to Constitution of the United States.

145. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

146. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

147. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

148. Accordingly, defendants violated Plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

149. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

150. Defendant CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State Law

152. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

153. Plaintiff, as a black woman, is a member of a racial minority and protected class.

154. Defendants discriminated against Plaintiff on the basis of her race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

155. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

156. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of her Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

157. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

158. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

159. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

160. Accordingly, Defendants violated Plaintiff's rights, pursuant to section 11, Article I, of the New York Constitution, section 79-N, Article VII, of the New York Civil Rights Law and paragraph 13, section 296, of the New York Executive Law.

161. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

162. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

163. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

164. Plaintiff, as a black woman, is a member of a racial minority and protected class.

165. Defendants discriminated against Plaintiff on the basis of race, color or ethnicity.

166. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

167. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of her Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

168. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

169. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

170. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

171. Defendants CITY, as employers of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

172. Accordingly, Defendants violated Plaintiff's rights, under the Fourteenth Amendment.

173. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

174. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

175. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of her rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be

afforded a fair trial, to not be deprived of her liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

176. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

177. As a result, Plaintiff sustained injuries to her person, was deprived of her liberty or was deprived of rights or privileges of citizens of the United States.

178. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of her civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

179. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

180. Accordingly, Defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth or Fourteenth Amendments to the United States Constitution.

181. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

182. The above paragraphs are here incorporated by reference as though fully set forth herein.

183. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

184. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

185. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

186. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVEENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

187. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

188. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

189. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, Sixth or Fourteenth Amendments.

190. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Fabricated Evidence Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

191. The above paragraphs are here incorporated by reference as though fully set forth herein.

192. Defendants deliberately fabricated evidence against the Plaintiff and that as a result of this evidence being used against him, he was deprived of her rights to Due Process of Law or Fair Trial.

193. As a result, Plaintiff sustained injuries to her person, was deprived of her liberty or was deprived of rights or privileges of citizens of the United States.

194. Defendants fabricated evidence in order to support their false arrest, detention and prosecution of the Plaintiff.

195. Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true.

196. As a result, the Plaintiff was deprived of her rights, pursuant to the Fifth, Sixth or Fourteenth Amendments to the Constitution of the United States.

197. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention or Supervision Under
New York State Law

198. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

199. Defendants CITY owed duties of care to Plaintiff to adequately hire, train, retain or supervise their employees, including the individually named defendants herein.

200. Defendants CITY breached those duties of care.

201. Defendants CITY placed the individually named defendants in positions where they could inflict foreseeable harm.

202. Defendants CITY knew or should have known of that their employees, including the individually named defendants herein, exhibited substantial propensities for committing civil rights violations against members of the public, such as Plaintiff.

203. Defendants CITY failed to take reasonable measures in hiring, training, retaining or supervising their employees, including the individually named defendants herein, that would have prevented the aforesaid injuries to Plaintiff.

204. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

205. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

206. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law which presented a serious risk of physical injury to Plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

207. Accordingly, Defendants committed a crime of violence against Plaintiff and violated Plaintiff's rights, pursuant to the section 10-403 of the Administrative Code of the City of New York.

208. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

209. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

210. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 *Against* Defendant City

211. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

212. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived of her civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

213. Defendant CITY's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

214. Defendant CITY, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

215. Defendant CITY's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant CITY and its policymakers toward the rights of individuals, who may come into contact with Defendant CITY's employees.

216. Defendant CITY's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

217. Defendant CITY's conduct caused Plaintiff to be deprived of her civil rights, as guaranteed by the Constitution of the United States *vis-à-vis* the First, Fourth, Fifth, Sixth, Eighth or Fourteenth Amendments thereto.

218. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged

WHEREFORE, Plaintiff respectfully requests judgment against defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

v) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

w) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, in addition to the Administrative Code of the City of New York; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
May 13, 2024

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

s/Junya Zeng
Junya Zeng, Esq.
Attorneys for Plaintiff

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF QUEENS)

Sonia Wimms, being duly sworn, deposes and says:

I am the plaintiff in this action and I have read the foregoing. Same is true to my own knowledge, except as to the matters therein stated to be upon information and belief, and as to those matters I believe them to be true.

May 15, 2024



Sonia Wimms

SWORN TO ME ON THE
15th DAY OF MAY 2024


NOTARY PUBLIC

Gilbert Wong
Notary Public, State of New York
No. 01W06377690
Qualified in Queens County
Commission Expires December 2, 2026